

EMERGENCY EX PARTE MOTION FOR IMMEDIATE RELIEF (MCR 7.306 & 7.316)

NOW COMES Petitioner, Andrew J. Pigors, in propria persona, and moves this Court for immediate ex parte relief under MCR 7.306 (original proceedings) and MCR 7.316 (miscellaneous relief), stating:

- 1) Irreparable Harm: Petitioner has been deprived of parenting time for ~3 months without clear-and-convincing evidence of endangerment. See MCL 722.27a(1),(3). The child's relationship with Father is being severely damaged by continued suspension and alleged weaponization of PPO show-cause proceedings.
 - 2) Judicial Conduct: The lower court repeatedly refused to accept Petitioner's exhibits at hearing and referenced a second mental-health evaluation that Petitioner did not take; the provenance and chain-of-custody of that document are unknown and must be investigated.
 - 3) Due Process: The record reflects repeated notice and hearing anomalies (USB/ex parte intake, staff pre-listening, refusal to file mental-health evaluation with the clerk, exhibit exclusion), contrary to neutral process, and raises Canon and MCR 2.003 disqualification concerns.
 - 4) Relief Sought Now: (a) Immediate stay of all PPO contempt/enforcement and parenting-time suspensions; (b) Immediate restoration of regular parenting time under MCL 722.27a, or in the alternative, a neutral third-party evaluator not affiliated with the parties; (c) Issuance of subpoenas/production orders for transcripts/audio, AppClose exports, Emily Watson device/phone/location records, and clerk exhibit intake logs; (d) Transfer to a neutral judge pending investigation; (e) Nullification of any 'second' mental health report unless authenticity is established by sworn custodian affidavit and Petitioner's consent.
 - 5) Incorporated Materials: This motion incorporates by reference the Verified Complaint for Superintending Control, Exhibit N (NoReply PDFs index), and attached exhibits listed therein.
- WHEREFORE, Petitioner prays for immediate entry of the proposed order submitted herewith.